

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #08	CCRB Case #: 201409157	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/05/2014 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/5/2016	Precinct: 46
Date/Time CV Reported Fri, 09/05/2014 6:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 09/05/2014 6:02 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Valdez	30750	942563	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ezequiel Burgos	00211	941471	046 PCT
2. POM Daniel Iacovides	10412	935038	046 PCT
3. POF Catherin Thomas	23675	946318	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Valdez	Discourtesy: PO Richard Valdez spoke discourteously to § 87(2)(b)	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 5, 2014, at approximately 1:30 p.m., § 87(2)(b) entered § 87(2)(b) in the Bronx. When § 87(2)(b) entered the store, he saw that his ex-fiancée, § 87(2)(b) was working inside the store as a cashier. § 87(2)(b) began speaking with § 87(2)(b). The store manager, § 87(2)(b) and another employee, § 87(2)(b) were also inside the store. § 87(2)(b) left the store briefly and realized that he still had a photograph of § 87(2)(b) in his wallet and he wanted to return it to § 87(2)(b) to break all sentimental ties with her. § 87(2)(b) returned to the store and gave the photograph back to § 87(2)(b). § 87(2)(b) noticed that § 87(2)(b) was texting someone on her phone and she also took a phone call while § 87(2)(b) was in the store. § 87(2)(b) was texting PO Richard Valdez from the 46th Precinct, informing him that § 87(2)(b) was inside the store and she wanted him to leave. PO Valdez was unable to immediately respond to the store, so he contacted PO Ezequiel Burgos from the 46th Precinct and asked him to visit the store for him. PO Valdez informed PO Burgos that § 87(2)(b) has seen § 87(2)(b) with a gun in the past and told PO Burgos to be careful. PO Burgos arrived at the store with PO Catherin Thomas and PO Daniel Iacovides from the 46th Precinct. PO Burgos waited at the store with § 87(2)(b) until PO Valdez arrived. PO Valdez allegedly said, “I’m going to give you a courtesy and let you go, but do me a favor, don’t fucking come back to § 87(2)(b),” to § 87(2)(b) (**Allegation A**). The officers let § 87(2)(b) go and he left the store. § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) refused mediation. On May 29, 2015, a FOIL request was sent to the New York City Comptroller’s Office and the status of a Notice of Claim for § 87(2)(b) is pending. § 87(2)(b), § 86(1)(2)&(4), § 87(2)(a)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- This is § 87(2)(b)’s first CCRB complaint (encl. 2a).
- PO Valdez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1d).

Findings and Recommendations

Explanation of Subject Officer Identification

PO Valdez acknowledged interacting with § 87(2)(b)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Recommendations

Allegation A—Discourtesy: PO Richard Valdez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when PO Valdez arrived at the store, PO Burgos handed over § 87(2)(b)'s ID and PBA card over to PO Valdez. PO Valdez asked § 87(2)(b) who he knew in the police department; § 87(2)(b) replied that his § 87(2)(b) was a police officer. During the conversation, PO Valdez allegedly said, "I'm going to give you a courtesy and let you go, but do me a favor, don't fucking come back to § 87(2)(b)," to § 87(2)(b) (encl. 7a-7f).

§ 87(2)(b) (encl. 8a), the manager of § 87(2)(b) stated that the officers and § 87(2)(b) were speaking in Spanish and thus he could not understand what they were saying to each other. § 87(2)(b) (encl. 9a), an employee working at § 87(2)(b) did not recall hearing an officer make the alleged discourteous remark. § 87(2)(b) (encl. 10a) stated that she did not hear the conversation § 87(2)(b) had with the responding officers because she walked away from § 87(2)(b) and the officers.

PO Valdez confirmed that he obtained § 87(2)(b)'s phone number during a previous visit that he made to § 87(2)(b) regarding the domestic situation between § 87(2)(b) and § 87(2)(b). § 87(2)(b) informed PO Valdez that § 87(2)(b) was an auxiliary officer and that she had seen him with a gun in the past. PO Valdez was the auxiliary coordinator for the 46th Precinct, but he did not know for certain whether § 87(2)(b) was in fact an auxiliary officer. On the date of this incident, § 87(2)(b) called PO Valdez and informed him that § 87(2)(b) was inside § 87(2)(b). PO Valdez was unable to reach the store immediately so he contacted PO Burgos to visit the store ahead of him. When PO Valdez eventually arrived at § 87(2)(b) he spoke with § 87(2)(b) and asked him whether he was an auxiliary officer. § 87(2)(b) denied that he was an auxiliary officer. PO Valdez stated that he told § 87(2)(b) to handle his personal issues with § 87(2)(b) outside the store, since the domestic situation was interfering with § 87(2)(b)'s work. PO Valdez told § 87(2)(b) that if he returned to the store, the manager would call police and § 87(2)(b) would be arrested for trespassing. PO Valdez asked § 87(2)(b) to leave the store and he complied. PO Valdez denied saying "Don't fucking come back to § 87(2)(b) to § 87(2)(b)." PO Valdez did not say the word "fuck" to § 87(2)(b) (encl. 11a-11e).

PO Thomas (encl. 13a-13d), PO Burgos (encl. 12a-12f), and PO Iacovides (encl. 14a-14f) denied hearing PO Valdez make the alleged discourteous remark.

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)
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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date